

 John Hardworker • Senior SW Engineer	 Behaviour Anomaly • Abnormal times, frequency and transactions
 Appropriate entitlement • IDM, LDAP, HR	 Suspicious activity • Privilege access from unknown source
 Source code repository • Sensitive trade secrets	 Peer Anomaly • Abnormal file access compared to peers

User behaviour analytics to identify stealing of trade secrets (Credit: www.youtube.com)

tagged by inaccurate records. While the bill gives to individuals new protections to control what data about them is collected, stored and processed by companies, in reality this control may be deceptive for the majority of the population that relies on government services.

The bill exempts the government from seeking individual consent anytime it is delivering a service or benefit, or providing a licence or certification. Even if it did, the bill is clear that all consequences of withdrawing consent fall on the user.

When an individual gives his or her personal data to a railway ticket booking website, he or she expects it to be used only to book the railway ticket and not to be used for any other purpose, irrespective of what the legalese-filled consent form might contain. This is because the relationship between the individual and the website is based on trust. The individual expects data provided to be used in a certain way and trusts that the entity will do so.

Today, individuals agree to long consent forms on smartphones while downloading apps without really knowing what they are agreeing to. As an example, an app that is meant to provide a taxi for hire can read messages or look at contacts.

The bill addresses this anomaly by introducing principles of collection and defining purpose limitations. Entities will only be allowed to collect information necessary for their service. Also, purposes for which such information is to be used needs to be clearly communicated.

Once a user's username and password is known, whoever has these can engage in various harmful activities. Companies are employing unique and high-technology system defenders called user behaviour analytics (UBA) that enable detection of any suspi-

cious activity by identifying deviant behaviour or by comparing behaviour within a peer group. In addition, UBA is used as a valuable tool for training employees for improved security practices.

Future perspective

The report and the draft legislation on data protection submitted by Justice Srikrishna's committee of experts provide a sound foundation on which India's legal framework can be built upon. It seeks to codify the relationship between individuals and firms/state institutions as one between data principals (whose information is collected) and data fiduciaries (those processing the data), so that privacy is safeguarded by design.

Justice Srikrishna has expressed that data privacy is a burning issue, and there are three parts to the triangle. The citizen's rights have to be protected, responsibilities of the states have to be defined but data protection cannot be at the cost of trade and industry.

The draft legislation draws inspiration from GDPR, the framework on data protection implemented in the EU. The report envisages creation of a regulatory DPA of India to protect the interests of principals and to monitor the implementation of the provisions for enabling data protection legislation.

Taken together, the draft bill and the report mark a significant step forwards, but there are some grey areas. Exemptions to state institutions from acquiring informed consent from principals or processing personal data in many cases are too broad, such as those pertaining to the security of the state. These are hold-all phrases, and checks are vital. The report recommends a law to provide for parliamentary oversight and judicial approval of non-consensual access to personal data.

As per the draft bill, data fiduciaries should collect only required data from an individual, state the purpose of its use explicitly and store it only for as long as it is required. Citizens and Internet users will have the final say on how and for what purpose their personal data can be used. They will also have the right to withdraw

consent. There will be the option of right to be forgotten, subject to certain conditions.

Some of the committee's recommendations have raised concerns among interested parties. These include the move to restrict cross-border flow of personal data, mandating storing critical personal data within the country and criminal prosecution along with stiff penalties against those violating data privacy rules. Also, the draft grants the government the discretion to identify what critical personal data is.

The report suggests amendments to the Aadhaar Act from a data protection perspective to deal with enforcement action and individual remedies. The draft bill is to be tabled in the Parliament after holding consultations with different ministries, industry representatives and the public, and obtaining approval from the Cabinet.

Even as India sees impressive growth in smart Internet users and the e-commerce market, it is Big Data companies like Google, Amazon and Facebook that have more control over the country's digital ecosystem. It would be desirable to hammer in the principle that, while business and technology are global, data is fundamentally local.

So far, Amazon is meeting the regulatory requirements under the licence granted by the RBI to its wallet service called Amazon Pay. This is by virtue of compliance with local laws and applicable regulations. Amazon India shares users' payments data with Indian government authorities and enforceable agencies, when required, according to its privacy policy listed on the company platform. This is done for the purposes of verification of identity or for prevention, detection, investigation including cyber incidents, prosecution and punishment of offences. This includes personal information as well as sensitive data.

This is in contrast to the practice followed by Amazon in the US where, while disclosing user data to the government, the company also publishes a transparency report, which includes the number of government requests it has received, how many of these were answered fully or partially, along with queries it refused to answer legally. **EFY**